



U.S. Department
of Transportation

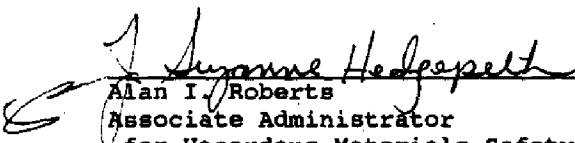
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10353 (EXTENSION)
ORIGINAL March 28, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10353 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 31 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Walpole, Inc.
Mt. Holly, NJ

November 22, 1993

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 10353

1. Walpole Incorporated, Mt. Holly, New Jersey is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of a type of blasting agent described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking, and sale of collapsible disposable polyethylene lined woven, polypropylene bulk bags having a capacity not greater than 2200 pounds each with top and bottom outlets, for shipment of ammonium nitrate-fuel oil mixtures and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Walpole Incorporated's application dated January 12, 1990, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Ammonium nitrate-fuel oil mixtures which have been classed and approved as blasting agents by the Director, Office of Hazardous Materials Transportation.

4. PROPER SHIPPING NAME (49 CFR 172.101) Ammonium nitrate-fuel oil mixture.

5. REGULATION AFFECTED. 49 CFR 173.114.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a non-DOT specification collapsible, flexible disposable (non-reusable) bulk bag. Bag is fabricated of woven polypropylene, incorporating liftstraps of woven polyester webbing plus a lining of polyethylene film (of 0.0035 inch minimum thickness), and having discharge and inlet openings closed by means of polypropylene rope, and a capacity of not over 2,200 pounds.

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Bag prepared for shipment, must be capable of satisfactorily withstanding: free-fall Drop test (three from a height of four feet); Jerk test; Topple test; Topple & Drag test; Righting test as described in "Procedures for Performance Testing of Flexible Intermediate Bulk Containers" Packaging Institute, U.S.A. procedure T-4102-85 dated February 1985.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

d. Shipment must be in closed vehicles or freight containers, in full truckloads or container loads only.

e. Each bag must be permanently and durable marked in accordance with the requirements of Section 172.331 in letters at least two inches high on a contrasting background. The use of labels, tags or signs for marking purposes is prohibited.

f. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

g. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or packaging failure must be reported to the Office of Hazardous Materials as soon as practicable.

10. EXPIRATION DATE. March 15, 1992.

Issued at Washington D.C.



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

MAR 28 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA.